BY ORDER OF THE COMMANDER UNITED STATES AIR FORCES IN EUROPE-UNITED STATES AIR FORCES AFRICA

UNITED STATES AIR FORCES IN EUROPE-AIR FORCES AFRICA INSTRUCTION 51-508

16 OCTOBER 2018

Law

COMPLAINTS BY LOCAL NATIONALS IN THE UNITED KINGDOM AGAINST UNITED STATES AIR FORCE PERSONNEL

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: Publications and forms are available on the e-Publishing website at **www.e-Publishing.af.mil** for downloading or ordering.

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This instruction implements Air Force Policy Directive (AFPD) 51-5, Administrative Law, Gifts, and Command Relationships. It updates implementation of an agreement dated 31 August 1988 between the British Under Secretary of State for the Armed Forces and USAFE-UK delineating procedures to be followed when complaints by Local nationals (LN) are filed against United States Air Force (USAF) personnel assigned or on temporary duty (TDY) to the United Kingdom (UK). These procedures do not apply to members of the Local National Direct Hire (LNDH) workforce for any duty-related or workplace-related issues. This publication applies to Air Force Reserve Command (AFRC) units and to the Air National Guard of the United States (ANGUS). Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) Air Force Manual (AFMAN) 33-363, Management of Records, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, Recommendation for Change of Publication; route AF Forms 847 from the field through the appropriate functional chain of command. This publication may be supplemented, but all direct Supplements must be routed to the OPR of this publication for coordination prior to certification and approval. The authorities to waive requirements in this publication are identified with a Tier number (T-0, T-1, T-2, T-3) following the compliance statement. See AFI 33-360, Publications and Forms Management, for a description of the authorities associated with the Tier numbers.

Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the publication OPR for non-tiered compliance items.

SUMMARY OF CHANGES

This instruction has been changed to clarify that the procedures described herein do not apply to Local National Direct Hire (LNDH) personnel for any duty or workplace-related issues, as those personnel have other avenues to address complaints relating to employment matters.

1. Forwarding of Complaints.

1.1. Complaints by LN's alleging mistreatment by USAF members while stationed in the UK and while in performance of their official duties may be initially received by a local police force, the Ministry of Defense Police (MDP), the Royal Air Force (RAF) Commander on a USAF occupied base, or the USAF itself. In each case, such complaints should be passed via the RAF Commander to the USAF Law Enforcement desk at the relevant base and to the Senior RAF Liaison Office (RAFLO) at USAFE-UK, RAF Mildenhall. This instruction does not apply to Local National Direct Hire (LNDH) personnel for duty or workplace-related issues, as those personnel have other avenues to address complaints relating to employment matters. (T-0).

1.2. Processing of Complaints. If a complaint is not capable of informal resolution, it shall be forwarded to the office of the United States Country Representative to the United Kingdom (UK USCR), RAF Mildenhall. A member of his administrative staff shall log in the complaint (T-0).

2. Complaints Review Board.

2.1. The UK USCR or his designated representative in his absence will convene a board with due diligence. The board shall be composed of three members: a representative from the Office of Legal Services, USAFE-UK/JA; a representative from the Air Force Office of Special Investigations (AFOSI); and a Security Forces representative from USAFE-UK/IR, (International Relations). The junior ranking member shall serve as the recorder. The board is authorized to augment with other advisors, as they deem appropriate; however only the three board members shall be voting members. Once convened, the review board shall be the primary duty of the board members (T-0).

2.2. The UK USCR or his designated representative in his absence may appoint an Investigating Officer (IO) to assist the board. Once appointed, the duties of the investigating officer shall be the primary duty of the IO (T-0).

3. Duties of the Board.

3.1. The board will immediately provide a copy of the complaint and any available documentation regarding the complaint to the investigating officer for use in gathering further evidence (T-0).

3.2. The board will investigate the complaint, ensuring the investigation is conducted independently of all other investigations, though evidence obtained by other investigations may be used (T-0).

3.3. The board will ensure, and may request from UK authorities, access to all pertinent documentation necessary to facilitate a thorough understanding of the facts.

3.4. The board will receive all documentation and evidence gathered and review the same to assure a complete investigation. If the board has authority to explore further avenues regarding the complaint, the board may direct an IO to reopen his inquiries (T-0).

3.5. The board will provide a report of its findings to the USCR for his consideration, attaching a copy of the IO's Report of Investigation (Paragraph 5.4). The board may include recommendations for corrective actions in its report (T-0).

4. Duties of the IO.

4.1. The IO will collect written statements from the complainant and any other witnesses the complainant may produce or whom the IO deems has relevant information to provide to the board.

4.2. The IO may, at the discretion of the board, also interview the complainant or any other witness, if the witness is willing to be interviewed. The UK police force may assist if requested to do so by the IO. Any interview of the complainant should be recorded and transcribed verbatim.

4.3. The IO will gather all pertinent regulations, operating instructions and guidance concerning any standards alleged by the complainant to have been breached by members of the U.S. Forces, and provide copies of the same to the board.

4.4. The IO will provide the evidence and documentation gathered to the board in the form of a Report of Investigation (ROI). The ROI will not contain conclusions or recommendations for corrective action (T-0).

5. Reporting Results of Complaint Review.

5.1. After completion of the investigation, and review and consideration by appropriate USAF authorities, the results of the investigation will be conveyed through the RAFLO (or his designated representative in his absence) to the RAF Commander of the base concerned, who will then write to the complainant, informing the complainant of the results of the investigation. **NOTE:** The USAF will release only the results of the investigation to the RAFLO, and not the complete report. A copy of the letter to the complainant shall be sent to the agency, which originally received the complaint (T-0).

ANDREW H. HANSEN, Brigadier General, USAF
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Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFPD 51-5, Administrative Law, Gifts, and Command Relationships, 31 August 2018

AFMAN 33-363, Management of Record, 1 March 2008

Prescribed Forms

NONE

Adopted Forms

AF Form 847, Recommendation for Change of Publication

Abbreviations and Acronyms

AFOSI—Air Force Office of Special Investigations

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

AFRC—Air Force Reserve Command

AFRIMS—Air Force Records Information Management System

ANGUS—Air National Guard of the United States

BN—British National

IAW—in accordance with

IO—Investigation Officer

LN—Local National

MDP—Ministry of Defense Policy

NATO—North Atlantic Treaty Organization

OPR—Office of Primary Responsibility

RAF—Royal Air Force

RAFLO—Royal Air Force Liaison Officer

RDS—Records Disposition Schedule

ROI—Report of Investigation

SJA—Staff Judge Advocate

SOFA—Status of Forces Agreement

TDY—Temporary Duty

UK—United Kingdom

UK USCR—United States Country Representative for the United Kingdom

US—United States

USAF—United States Air Force

USAFE—United States Air Force Europe

USAFE–AFAFRICA/UK—United States Air Forces Europe-United States Air Force Africa/ United Kingdom

USAF–EUK—United States Air Force Europe – United Kingdom

USAFE–UK/IR—United States Air Force Europe – United Kingdom/International Relations